

25SMCV01867 25SMCV01867

County: los-angeles

Division: Civil Law and Motion

Department: I

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This is a motion by plaintiff to enforce a settlement. Plaintiff contends that on September 11, 2025, the parties settled. According to plaintiff, defendant then tried to change the terms, but plaintiff did not agree to the changes. Plaintiff says that defendant breached the settlement and plaintiff now seeks an order to enforce it under Section 664.6.

The court does not believe that the court can do so. The settlement consists of an exchange of emails. Under the statute, though, that will not do. There must be an executed agreement. Electronic signatures are enough, but an exchange of emails generally is not. The attached emails have signature blocks, but no actual signature. In *J.B.B. Investment Partners, Ltd. V. Fair* (2014) 232 Cal.App.4th 974, the Court of Appeal discussed this issue. The court concluded that sometimes a printed name or symbol might be enough, but not necessarily. Under the Uniform Electronic Signature Act, the signature must be a sound, symbol, or process adopted by the person to be bound with the intent to sign the electronic record. It is that intent that this exchange of emails lacks.

Plaintiff, perhaps anticipating this, has sought to amend the complaint to add a cause of action to enforce the agreement. Unlike the instant motion, plaintiff can enforce the settlement agreement under normal contract principles if each element can be proven. That is a different question than 664.6, which has other specific requirements. It might even be that whether or not there is a contract can be determined on summary judgment (one way or the other),

although the court is certainly not opining on that now.

The bottom line is that the instant motion must be DENIED, but without prejudice to the pending motion to amend. The court will ask if defendant opposes the motion, and if not, the court can grant the motion for leave to amend today and take the October hearing date off calendar.

The court is not telling defendant to concede the point, of course, and if defendant wants to oppose the motion, it certainly may do so and the hearing will remain on calendar.